

RICHARD PARKER.

President of the Committee of Delegates for the redress of Grievances on Board the Sandwich at the Nore

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PRICE SIX-PENCE.

THE

Whole Trial and Defence

OF

RICHARD PARKER,

PRESIDENT OF THE

DELEGATES,

FOR

Mutiny, &c.

On board the SANDWICH, and others of His Majesty's Ships, at

THE NORE,

In May, 1797.

Before a Court Martial, held on board the *NEPTUNE, of* 98 *Guns*,

Laying off GREENHITHE, near Gravesend,

On THURSDAY, 22d of JUNE, 1797, and following Days.

TAKEN IN SHORT-HAND.

LONDON:

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THE

TRIAL

OF

RICHARD PARKER, &c.

THURSDAY Morning, June 22, 1797, about ten o'clock, the Members of the Court Martial appointed to try RICHARD PARKER, lately of His Majeſty's ſhip Sandwich, for Mutiny and Diſobedience of Orders, aſſembled on board the Neptune, of 98 guns, lying at Greenhithe. The Court opened in about half an hour afterwards. PARKER was introduced, guarded by a Serjeant, ſeemingly of the Artillery, for his uniform was blue, faced with ſcarlet. This Serjeant ſtood during the whole trial, oppoſite to PARKER, with a drawn ſword in his hand, erected in the face of the Priſoner. The Serjeant was the only man in Court who wore his hat during the proceedings.

The following Gentlemen compoſed it.

ADMIRAL PASLEY, PRESIDENT.

Sir E. Gower,	
Capt. Stanhope,	Neptune.
—— Williamſon,	Agincourt.
—— Markham,	Centaur.
—— Wells,	Lancaſter.
—— Sir J. Williams,	Endymion.
—— Riou,	Princeſs Auguſta.
—— Sir F. Laforey,	Hydra.
—— King,	Sirius.
—— Lane,	Acoſta.
—— Pierpoint,	Naiad.

The Members of the Court being ſworn, and Mr. BENSTEAD, the Deputy Judge Advocate, having taken the Oath of Secrecy.

The Order of Government to the Lord High Admiral for the Court-Martial was read. It ſtated, "Whereas we have received information from Vice-Admiral BUCKNER, Commander of the Fleet at the Nore,

and by divers other letters, that a Mutiny had taken place on board the Sandwich, on or about the 12th of May laſt, and did continue for ſeveral days, to the evil example of His Majeſty's Fleet, and that RICHARD PARKER was active in promoting the ſame; and whereas we think fit that the ſaid RICHARD PARKER ſhould be tried by a Court Martial for ſuch offence, we, therefore, direct you to aſſemble a Court-Martial to inquire into the conduct of the ſaid RICHARD PARKER on board His Majeſty's Ships, or any of them, and alſo, for his contempt and diſobedience to his Officers."

The oath was then taken by the ſeveral Captains compoſing the Court.

All the witneſſes were ordered out of Court, till ſuch time as they ſhould be called to be examined.

John Sims, a witneſs, who had been ſummoned on behalf of the priſoner, not appearing, Mr. John Snipe, the Surgeon of the Sandwich, was ſworn, and ſtated that the witneſs the priſoner had called, was confined to his bed by illneſs.

The oath adminiſtered to each witneſs was, I ſwear by God, and as I ſhall anſwer to Almighty God at the day of judgment, that the evidence I ſhall give ſhall be the truth, the whole truth, and nothing but the truth, ſo help me God.

CHARLES BUCKNER, *Admiral of the White, ſworn.*

Q. Did the priſoner belong to the Sandwich?

A. Yes, he was reported to me as belonging to her, but I do not know in what capacity.

Q. Do you know the priſoner? A. Yes.

Relate to the Court what you know of the priſoner's making any mutinous attempt on board his Majeſty's fleet, on or about the 12th day of May laſt, or of any diſreſpectful conduct or expreſſions uſed by him on board or on ſhore, at any time afterwards during the ſaid mutiny.

A. I know nothing of the priſoner individually. The firſt time I obſerved any thing particular in the priſoner's conduct, farther than paſſading about with a vaſt number of people and a red flag preceeding them on ſhore, was on or about the 20th of May, when I went on board the Sandwich for the purpoſe of making known to the people of that ſhip and other ſhips his Majeſty's Proclamation of pardon, on their returning to their duty, on the terms granted to their brethren at Spithead which they (the men ſtiling themſelves Delegates, with Parker the priſoner amongſt them) had previouſly declared they would be ſatisfied with. On my going on board with the flag in my boat, there was no preparation for receiving me, nor any reſpect ſhewn me whatever. The Officers, as I underſtood, were without their ſide arms, and had no command of the ſhip. Unwilling to return on ſhore without having an opportunity of ſpeaking to the people, I waited a conſiderable time

when Parker, the priſoner, with others, came on the quarter deck and ſaid, that none but themſelves (meaning, I preſume, the ſhip's company) ſhould be there. He (the priſoner) then tendered me a paper, containing what he and the reſt called a liſt of grievances, ſaying at the ſame time, till thoſe were redreſſed, and the perſonal attendance of the Admiralty ratified it, they would not give up the power they held in their hands. Finding any thing I could ſay of no avail, I went on ſhore. On or about the 22d, certain troops arrived at Sheerneſs. I do not ſpeak individually of Parker, but of the mutineers in general. About the 23d my flag was ſtruck on board the Sandwich, I don't ſay by whom. I don't charge any individual, it was ſtruck without orders. About that time, in the evening of that day, I was at the Commiſſioner's houſe: while I was examining into the complaints alledged againſt two marines by part of the military, a man whom they called Davis, with, I believe, three or four others, came abruptly into the Commiſſioner's houſe at Sheerneſs, and demanded why thoſe men, meaning the marines, were in cuſtody; they ſaid my flag was ſtruck, that I had no authority, and that the power was in their hands. They then took the men away, as they ſaid, to try them for being on ſhore. I avoid repeating what I ſaid to them. It may be taken for granted I remonſtrated as much as poſſible with them. Parker told me that he was not to be intimidated. About the 4th of June I received a letter from Parker, to the beſt of my recollection, ſtiling himſelf Preſident, ſigned with the name of Richard Parker, ſaying that adminiſtration had acted improperly in ſtopping the proviſions allowed to the men, and that the *fooliſh Proclamation* was calculated to inflame the minds of honeſt men. I have nothing particular more to relate. I have had frequent conferences with him, at the head of many others, with the hopes of bringing them to a ſenſe of their mutinous conduct, but without any good effect. He, the Priſoner, took the lead as ſpokeſman.

Q. Did he act with any degree of inſolence?

A. Sometimes; not always. He took the lead, appealing to them whether he was not authorized, and whether it was not their wiſh he ſhould do ſo, and he even prevented one man in particular, whoſe name I know not, from anſwering a queſtion I had put to him.

Q. Was he a ſeaman?

A. I do not know. He prevented him with threats, ſaying, "If you ſpeak, I will ſpeak to you." While I was on board the Sandwich, I expoſtulated with them on the impropriety of keeping thoſe diſgraceful ropes called Yard Ropes, on board, and endeavoured to prevail on them to pull them down. The men ſtyling themſelves Delegates replied, that the ſhip's company would not ſuffer them.

Preſident. In the different conferences you had with the Priſoner did their appear any inſolence in his behaviour?

A. Fre-

A. Frequently, but not uniformly ſo, very often otherwiſe; ſometimes their was a great deal of modeſty in his behaviour, and he conducted himſelf with a great deal of apparent reſpect.

Preſident. Who was the Officer that brought the report of the mutiny? Was Lieutenant Juſtice the Officer who brought the report of the Mutiny having broke out on board the Sandwich on the morning of the 12th of May? A. Yes.

Q. Did you not order Lieutenant Juſtice of the Inflexible, while I was Preſident at a Court Martial, to break up that Court, and wait on you for orders? A. Yes.

Preſident. Read Admiral Buckner's Letter.

Admiral Buckner's letter was here read, giving an account of the Mutiny. It was dated 12th May, at Sheerneſs, and ſtated, that a Mutiny had made its appearance at the Nore, on board the Sandwich, that the Crew had taken the command from the Officers, and that the Marines had joined them. The letter then proceeded to deſcribe the Mutiny generally, and concluded, by obſerving, that it had been originally owing to a diſbelief of the Act of Parliament having paſſed, and that it had afterwards been fomented by miſchievous individuals.

A letter from Captain Moſs was next read, giving an account of the Mutiny having broke out. The next letter was one of Parker's, which had been ſent to Admiral Buckner. It was brought on ſhore by an old man, after the Proclamation had been ſent on board the fleet. The letter was dated the 3d of June, and was to the following effect:

SIR,

"I am commanded by the Committee of the Sandwich to inform you, that they have this day taken poſſeſſion of, and appointed Delegates for the whole fleet. We are uniformly of opinion that the conduct of the Admiralty has been highly improper, in ſtopping the proviſions allowed by Government to the Seamen, and that the fooliſh Proclamation which we have received is only calculated to exaſperate the minds of a ſet of honeſt men, who would never be more happy than in ſerving their country."

To Admiral Buckner.

Being aſked whether he was certain the letter was genuine, he expreſſed his certainty that it was from Parker.

Q. What number of perſons were there at the Commiſſioner's houſe, when the two Marines were examined?

A. There were Parker and Davis, and four or five more.

Q. What number of Military were the Marines in charge of?

A. I do not know.

Croſs-examined by Parker the Priſoner.

Q. You have related that you was on board the Sandwich on or about the 20th of May, and received no reſpect. Who was on board firſt, you or myſelf? A. I believe I was.

Q. Do

Q. Do you deem me the perſon that cauſed you to be received with no reſpect? A. Not having ſeen you in any overt acts of Mutiny, I cannot ſpeak to that queſtion.

Parker.—I aſk the queſtion to ſhew that I did not influence the ſhip's company. Did I not come to you on the quarter-deck and inform you it muſt have originated entirely in a miſtake that you was not received with that honour due to you; but that if you would excuſe it then, we were ready to give you three cheers now?

A. He did come to me and ſay that it was a miſtake, and that no diſreſpect was intended me. Some faint attempts were made to man the yards, but it ſubſided, and the yard ropes continued.

Q. Do you recollect going on ſhore the ſame day with the Sandwich's and ſome other boats attending, and ſeeing your flag hauled down?

A. I did not obſerve the flag was hauled down; ſeveral boats attended me.

Parker. I was in the boat when your flag was hauled down; I obſerved it with a great deal of ſorrow.

Court. When the Priſoner treated you with reſpect and modeſty, was it privately or publickly before the ſhip's company?

A. I never had any private converſation with him, and never ſaw him before the ſhip's company but once, and never on board the Sandwich but once. At all other times it was with a number of perſons calling themſelves Delegates.

Q. When the Priſoner came to you on the 20th May, and apologized for due reſpect not having been paid to you, did he appear to you to have any influence, or to command the people on board by his authority, or to be active in the ſhip?

A. I conceived, by his coming to me to make that apology, that he muſt have had ſome command in the ſhip. I had no opportunity of obſerving him after he left the quarter-deck, till he came with the written paper as before mentioned in my former evidence.

Lieut. JUSTICE, *Second Lieutenant of the Sandwich ſworn.*

Q. Do you know the Priſoner? Yes.

Q. Have you heard the Charges read? Yes.

Q Did the Priſoner belong to the Sandwich, and in what ſtation?

A. Yes; he was a ſupernumerary ſeaman.

Q. How long has he belonged to it?

A. I cannot ſay; I was at the Admiralty when he came on board.

Be pleaſed to relate to the Court, as directed to the foregoing witneſs.

I never ſaw the priſoner on the 12th of May. I was turned aſhore on Friday the 12th of May, I can't ſay by whom. A Paper was ſent aft for certain officers to quit the ſhip. At 8 o'clock I pip'd to breakfaſt; at half paſt 9, I gave orders to turn the hands up and clear hawſer. The ſhip's company all got forward on the booms, and gave three cheers, which

which were immediately anſwered by the Director ſhip's company; immediately our ſhip hove yard-ropes, and pointed the forecaſtle guns to the quarter deck. I immediately went forward and remonſtrated with them as to their conduct; they all anſwered they wanted their grievances redreſſed.

Court. What do you know of the Priſoner?

A. I know nothing of him; I know only of the general Mutiny; the firſt time I ſaw him was on the 11th, when he came with a letter on the quarter-deck. I did ſee him on the 12th on the forecaſtle, when the guns were pointed aft.

Q. On the 12th when they gave three cheers, was there no particular perſon that appeared to you to take a leading part in the tranſactions going on? A. No, I did not ſee. They were one and all.

Q. Was you the Commanding Officer of the Sandwhich on the 11th as well as the morning of the 12th of May?

A. I was publickly on the quarter deck.

Q. Did you read an Official Paper ſent off by Admiral Buckner, repreſenting the Vote of the Houſe of Commons, of the granting the ſum of 372,000l. to anſwer the expences which the requiſition of the Seamen had rendered neceſſary? A. I did.

Q. How was it received? A. With three cheers, as I read it.

Proſecutor. On returning to the Sandwich in the morning of the 12th May, after reporting the mutiny that exiſted, do you remember acquainting me the people had given charge of the ſhip to Mr. Bray, the Maſter? A. I think I do, Sir.

Q. You muſt recollect? A. Yes, I did.

Q. Do you remember orders being given that no Officer ſhould interfere, the Maſter having orders from the Committee, or a ſet of men who had uſurped the power, not to interfere with any duty of the ſhip, or with any Officers?

A. I heard that as ſoon as I returned from the ſhore.

Q. Did I not, notwithſtanding, direct the Boatſwain might pipe all hands. A. Yes.

Q. Was it obeyed by the people?

This queſtion was not anſwered, nor was the examination continued.

Croſs-examined by PARKER.

You have ſaid you know nothing of me? A. I do not.

Captain EDWARD O'BRYEN, *Commander of the Naſſau, ſworn.*

Q. Do you know the Priſoner? A. I never ſaw him in my life. I was not on board from the commencement till after the Mutiny was over.

Q. Was he ever on board the Naſſau? A. He was reported to be ſo; the Boatſwain was aboard; he is here.

Capt.

Capt. HANCOURT, *of the Agamemnon.*

Q. Do you know the Priſoner? A. I never ſaw him before to day.
Q. Was he ever on board the Agamemnon?
A. never to my knowledge.
Preſident. Has the Priſoner any queſtion to aſk? A. None, Sir.

Capt. COBB, *of the Lion.*

Q. Do you know the Priſoner? A. I never ſaw him before.
Q. Was he on board the Lion? A. Not that I know of.
Q. Have you any queſtion? (to the Priſoner.) A. No, Sir.

THOMAS PARR, *of the Standard.*

Q. Do you know the Priſoner? A. I never ſaw him before.
Q. Was he ever on board the Standard? A. never to my knowledge.

Capt. ROBERT WATSON, *of the Iſis.*

Q. Do you know the Priſoner? A. I do not.
Q. Was he ever on board the Iſis? A. I have heard that he was.

Captain W. HARWOOD, *of the Leopard.*

Q. Do you know the Priſoner? A. No, I do not.
Q. Do you know of his being on board the Leopard?
A. I have heard he was.

Mr. SNIPE, *ſurgeon of the Sandwich, ſworn.*

Q. Do you know the Priſoner? A. Yes.
Q. What was he on board the Sandwich?
A. I underſtood he was a ſupernumerary Seaman.
Q. How long has he belonged to the Sandwich?
A. I never recollect him before the 14th of May.
Report what you know, &c. (as before.)

In the afternoon of the 14th of May, I was ordered to attend the puniſhment of one of the ſeamen of the Sandwich, whoſe name is Campbell.

Q. By whom ordered? A. By Mr. Bray, the Maſter, who ſaid it was the Committee's orders that I ſhould attend the puniſhment. When I went on deck, the Priſoner was ſtanding on the gangway; as ſoon as Campbell was tied up, Parker made a ſpeech to the ſhip's company acquainting them with the crime of Campbell, ſaying, if any of them violated the laws laid down by the Committee, they muſt expect to ſhare the ſame fate; that was the general purport of his ſpeech.

Court. What do you mean by Committee?

A. The aſſembly of people calling themſelves Delegates in the Sandwich; the Priſoner was one of them. Two or three days after that, one of the ſhip's Corporals belonging to the Sandwich, whoſe name I believe was Wilſon, ſaid to me in the ward-room, it was the Committee's

orders that I ſhould immediately go between decks, and viſit a man in irons, whom he ſaid was very ill. I accordingly went, and found the perſon had a fever. I deſired the Corporal to go to the Committee, to ſay, it was dangerous to let the man remain in that ſituation. It was neceſſary for the man to be taken out of irons and ſent to his birth. He returned and ſaid it was the Committee's orders for me to make my report in perſon. I accordingly went to the ſtarboard bay of the lower gun deck, and there found a vaſt croud of people aſſembled. I aſked who I was to addreſs; and the priſoner, Parker, deſired me to addreſs him. I told him it was neceſſary to remove the priſoner that was then in irons. The Priſoner made anſwer——" It is not our intention to interfere with you at all. You may do with the ſick whatever you think proper." When I entered what they called the Committee-room, one of the People whom I ſuppoſed to be a Delegate, ſaid, take off your hat, Sir. Another perſon, but not the Priſoner, as I was looking round cried out, begone. I was two or three times before the Committee. I in general received an anſwer from Parker, that I might do with the ſick as I thought proper. On the 3d June, I ſent in to the Committee for permiſſion to go on ſhore. I aſked permiſſion of Davis, who acted as commanding Officer, on deck. I was ordered down to the Committee aſſembled in Captain Morſe's Cabin. I then aſked their permiſſion to go on ſhore, as I had ſome ſick on board, which I wiſhed to be removed to the Hoſpital. The Priſoner Parker recommended to the Committee to let me go on ſhore, upon condition that I returned to my duty next morning, and hoped I would uſe my influence to get the whole of the ſick of the fleet landed. I accordingly went on ſhore, and never returned on board again until the ſhip was under the command of Captain Morſe, the proper Officer. One day in May, after the Mutiny began, when the Priſoner was ſpeaking to Captain Morſe, who was pointing out to him the numerous improprieties which men in a ſtate mutiny were guilty of, the Priſoner ſaid, that he was certain, until their grievances were redreſſed, there would not one of them ſhrink, for if they did, it was certain they would be run up to the yard-arm (pointing to the ropes). I do not recollect any thing elſe for or againſt the Priſoner.

Preſident. You ſay, when you was on deck you ſaw the Priſoner haranguing. Did he appear to give orders? A. After he had made his ſpeech, he ordered the Boatſwain to do his duty.

Q. Did Parker give the orders for the man to receive a dozen laſhes?

A. Yes, he did.

Q. At what time? A. The puniſhment took place the 14th of May.

Q. When you ſay you underſtood Davis acted as Captain, in what capacity did you conceive the Priſoner acted? A. As Preſident of the Committee; it was generally underſtood ſo by the Officers, and every perſon.

Q. Do

Q. Do you recollect where the Priſoner was ſitting when you went into the Committee-Room, and what ſtation he appeared to hold when he was ſitting at the head of the Table in Captain Morſe's Cabin?

A. As Preſident.

Q. Did not the Priſoner appear to be the principal perſon?

A. He did when I ſaw him.

Q. Do you remember the day the Admiral's flag was hauled down?

A. I do not immediately recollect the day of the month.

Q. Do you recollect it was hauled down? A. I ſaw the Red flag in its place: I went upon deck after breakfaſt, and was very much ſurpriſed to ſee the Red flag in place of the Admiral's. It ſtruck me as the moſt daring outrage I had ever ſeen in the courſe of my life.

Q. Did the Priſoner at any time give his orders to aſſemble the people upon deck? A. I cannot pretend to ſay; I never heard; no ſuch orders were ever given in my hearing.

Q. By whoſe orders was the ſick perſon whom you repreſent to have been in irons confined, and for what offence? A. By order of the Mutineers aſſembled, calling themſelves the Committee.

Q. For what offence? A. Drunkenneſs—that was Campbell's crime.

Q. When Capt. Morſe was remonſtrating againſt the impropriety of the men mutinying, was the priſoner's hat off or on? A. His hat was on.

Croſs examined by PARKER.

Relating to the puniſhment of Campbell, do you recollect the maſter (Mr. Bray) being on the gangway? A. A number of people were aſſembled; I know he was on deck, but I do not know where.

Q. Do you know of Mr. Bray's having been conſulted as to the puniſhment of that man, who was beaſtly drunk with ſmall-beer?

A. I do not.

Q. When you mentioned my pointing to the yard ropes, and ſaying that I was ſure no one would ſhrink, or if they did they would go to the yard-arm; did you ſuppoſe I meant any thing elſe than if the people called Delegates were to propoſe ſuch a thing to the ſhip's company, that they themſelves would be the ſacrifice alluded to?

The Court humanely hinted at the dangerous tendency of the queſtion to the Priſoner, and he withdrew it with many thanks for the admonition of the Court.

I will aſk Mr. Snipe no more queſtions.

Captain THOMAS SURREDGE, *of the Iris.*

Q. Do you know the Priſoner? A. I have ſeen him ſeveral times.

Q. Had you any converſation with him?

A. No, I had none myſelf.

Q. Was he ever on board the Iris? A. I do not know; I was informed he was laſt Friday week, but I was not on board.

Q. Do you know any thing of the charge againſt the Priſoner? A. I have ſeen the priſoner paſſing ſeveral times in the boat with the Red flag flying. I ſaw him parading with the other Seamen, with a band of muſic, through the Blue Town, with a Red flag alſo. I ſaw the Priſoner at the Commiſſioner's houſe at Sheerneſs, in converſation with Admiral Buckner and the Commiſſioners; and, as near as I can recollect, he ſaid he could envy no Officer the command that they held, for he had experienced a great deal of trouble and difficulty in the ſituation in which he was placed, or words to that effect.

Q. Did he ſay this modeſtly and reſpectful? A. Yes, at that time he behaved with reſpect and modeſty. I ſaw him alſo another night; the laſt night he was on ſhore, before the mutiny at the Nore. He went to the Commiſſioners with two Delegates, one from the Naſſau, and one from the Standard. I do not know their names. One, as I underſtand, was the man who has ſince ſhot himſelf. He took a paper out of his pocket, and gave it firſt to one of thoſe Delegates, and then to the other, and aſked whether it did not contain the demands or reſolutions of the North Sea ſquadron. They returned the paper again, and ſaid it did: he then gave the paper to Commiſſioner Hartwell, who, after reading it, told the Priſoner that he was ſorry to find it contained ſo much freſh matter, that he could not think of going to London with it, but that had they confined themſelves to the laſt articles, (he Parker) had ſhewn that morning, he would have gone to the Admiralty with them. Commiſſioner Hartwell told them, if they were determined to inſiſt on thoſe laſt articles, it would be unneceſſary for him to take any further trouble in the buſineſs. I do not recollect the reply of the Priſoner, but I believe he went off with the determination not to return again.

Q. At the time you obſerved the Priſoner paſſing in the boat with the Red flag flying, were there any perſons ſitting on the ſtern ſheets beſide the band of muſic? A. I do not recollect whether the band was there or not; there were ſome other perſons.

Croſs examined by PARKER.

Do you recollect that I deſired Commiſſioner Hartwell to converſe with the Delegates of the North Sea fleet, and endeavour to convince them, as the four laſt articles which were objected were preſented by the fleet. A. I do not recollect. I ſuppoſed they were the demands of the North Sea fleet.

Q. Do you recollect that I ſaid a converſation with them would be more proper, as they had preſented the articles?

A. I do not recollect.

Capt.

Captain DIXON *ſworn.*

Knew the Priſoner; heard of the charge againſt him; has heard he belonged to the Sandwich; remembered well, on or about the 20th of May, that I accompanied Admiral Buckner to the Great Nore. The Admiral's flag was hoiſted on the bow of the boat, and the Admiral was in his full uniform. The Admiral went for the expreſs purpoſe of notifying his Majeſty's moſt gracious Pardon to the Crews of the ſeveral Ships under his command. In going on board the Sandwich, he was received without any of thoſe marks of reſpect due to his rank as a Flag Officer. Inſtead of accepting the King's Pardon, the Priſoner preſented ſeveral new Propoſitions, to be redreſſed under the head of Grievances. The Admiral was detained on board the Sandwich upwards of three hours, in conſequence of the Ship's Company, I apprehend, not coming to a ſpeedy determination reſpecting the propoſitions preſented by the Priſoner; at the end of which time they were preſented by Parker to Admiral Buckner in his cabin. The Admiral returned on ſhore, being ſuffered to leave his ſhip without any marks of the reſpect due to his rank. As the man-ropes were on the yards, the yard-ropes rove, and the Admiral treated with ſo much diſreſpect, for which the Officers ſeemed extremely concerned, not having it in their power to treat their Admiral with a proper and uſual reſpect, I conſidered the Crew to be in a high ſtate of mutiny. That was the whole reſpecting that one viſit. Several days afterwards I was at Commiſſioner Hartwell's houſe: the Admiral, who was there, had it reported to him, that two Marines belonging to the ſhips at the Great Nore had been brought for examination. As I advanced to the fore door I ſaw the Priſoner, who aſked me if the Commiſſioner could be ſpoken with; my anſwer was, I believed he was to be ſpoken with. The Priſoner came in, accompanied by one Davis, and demanded to know if the Soldiers had brought the Marines there.

Admiral Buckner aſked him what right he had to make any ſuch demand? The Priſoner ſaid, "I am not to be intimidated; your flag is ſtruck; you have no authority here; I, or we (I do not recollect which) command the fleet." Parker, the priſoner, immediately took up a pencil, and put queſtions to the Marines. He was ſuffered to interrogate them, and take them with him. During this laſt interview with Admiral Buckner, he behaved with the moſt daring inſolence and contempt, I have frequently ſeen the Priſoner leading a body of men, whom they called Delegates of the Fleet, paſſing with the Red flag diſplayed in proceſſion. Thoſe are the particular circumſtances, Mr. Preſident, that I can bring home to my recollection.

The Priſoner aſked, whether he (Parker) did not do all in his power to induce the Crew of the Sandwich to ſhew Admiral Buckner every reſpect? A. You did.

Court.

Court. Do you remember any particular converſation between the Priſoner and Admiral Buckner? A. Parker ſaid to Admiral Buckner, that neither he or they had any buſineſs there. I remember to have heard it ſaid by Admiral Buckner, that as he (Parker) and the reſt of the Delegates of the Fleet had pledged themſelves to accept the ſame indulgences which had ſatisfied their brethren at Spithead, it aſtoniſhed him (the Admiral) to find new propoſitions advanced. The Admiral was certain they could not be granted. I think the Priſoner, with five other Delegates in the cabin, ſaid it was the determination of the ſhip's Company to abide by the latter propoſitions.

Capt. Dixon having retired about four o'clock, the Preſident ſuggeſted the propriety of adjourning the Court till next day, which the Members agreed to; and it was declared that the Court ſhould proceed to actual buſineſs this morning at nine o'clock preciſely.

SECOND DAY's TRIAL.

FRIDAY, JUNE 23, 1797.

THIS day between ten and eleven o'clock, the Court again aſſembled on board the Neptune at Greenhithe, to proceed in examining the evidence for the Proſecutor.

The Priſoner expreſſed a wiſh that the attendance of Lord Northeſk and Captain Knight, ſummoned for the Priſoner, might be diſpenſed with, ſaying he could juſtify his conduct by means of his other witneſſes.

The Court differing about the word diſpenſe, after ſome conſultation, determined that thoſe witneſſes having been called by the Priſoner ſhould remain in order to give evidence.

PARKER aſked, whether after the Court Martial commenced, freſh Witneſſes were to be allowed to come forward who were not previouſly ſummmoned?

The Preſident obſerved, that no evidence would be offered againſt him that had not been ſummoned before the trial commenced, though it was perfectly legal to call them.

The Judge Advocate expreſſed his opinion as to its legality, and corroborated the Preſident's determination.

PARKER. I am perfectly ſatisfied.

JOHN WOOD, *Capt. of the Hound ſloop, ſworn.*

Q. Did you hear the charge read? A. Yes.

Q. Did you know the Priſoner? A. Yes, perfectly.

Q. Did he belong to the Sandwich, and in what ſtation? A. I believe he was a Supernumerary.

Q. Do

Q. Do you know how long he has belonged to the Sandwich? A. I cannot ſay how long. He was on board the Hound in April laſt, and ſent from the Hound to the Tender in Leith Roads in April laſt.

Relate to the Court what you know of the Priſoner's making any mutinous aſſembly on board the Sandwich, or any other of his Majeſty's ſhips or veſſels on or about the 12th of May, or of any diſrepectful conduct or expreſſions to his ſuperior Officers. A. I ſaw nothing of the Priſoner till the 2d of June, on which day he came on board the Hound, on her arrival at the Nore. He told me that he had the honor of repreſenting the whole Fleet, an honor which he ſhould never forget. That he underſtood that I had been very violent with ſome of the Delegates. He adviſed me not to be ſo violent as I muſt take the conſequences. He then told me that he did not like the ſhip's company, that he knew they were attached to me, for which reaſon *he* ſhould put her (the ſhip) in a ſafe birth, where ſhe could not make her eſcape. He ordered the Pilot to get the ſhip under weigh and carry her as cloſe to the Sandwich as poſſible; the Pilot told him it was an improper time of tide. He told the Pilot that if he did not chuſe to get her under weigh immediately he would find means of making him, at the ſame time pointed to the yard ropes. The Pilot got her under weigh and dropped her cloſe to the Sandwich, when the Priſoner ordered the anchor to be let go. He was then hailed from the Sandwich to ſay, we were too near them. The Priſoner replied, I think we are, Mr. Davis. He immediately turned to the Pilot, and with threatening language ſaid, you have committed one miſtake, take care you don't commit another; if you do, I will make a *Beef Steak* of you at the yard arm. He ordered him to get under weigh again, and to moor her between the Sandwich and the Inflexible. She was got under weigh, and came to upon the Sandwich's quarter, when the Priſoner had the hands turned up, and harrangued them forward: what paſſed I cannot exactly ſay; I heard him ſay, that he found they were not hearty in the cauſe, that he ſhould be obliged to ſhift them. He then aſked them if they had any complaints againſt their Officers; thoſe that they diſliked were to be turned on ſhore, and thoſe they liked were to be kept on board. After this, a Delegate came from the Sandwich, and I was taken out of the ſhip. I aſked by whoſe order, and the man calling himſelf the Delegate ſaid, it was by the order of the Preſident, Parker. I ſaw the Priſoner frequently rowing about the fleet, with a red flag and a band of muſic, with other perſons in the ſtern ſheets, talking to the crews of the ſhips. They cheered him as he paſſed. A man was put in irons on board the Hound, and, I was informed, by the Priſoner's order. I ſaw the Priſoner go forward and threaten the man.

Q. What do you know further? A. I ſent two letters on board the Sandwich, one to the Admiralty on ſervice, another a private one.

The

The Priſoner brought the letters to me, and told me they could not be allowed to go without being opened. I took my private letter, and told him he might open the other if he pleaſed. One of the men ſtanding by, deſired him not to open it. The Priſoner replied, "Hold your tongue, you ſcoundrel, or I will have you at the yard arm." He then told me he would open the letter, and ſend it aſhore in the Sick-boat, as there was no other mode of communication with the ſhore.

Preſident. Did the Priſoner confine you or any of your officers. A. He did not confine me, he told me that neither I, nor any of my Officers were to have any thing to do with the command of the ſhip. He likewiſe told me he pitied our ſituation, but that they muſt go through with it, for the good of the cauſe they had embarked in.

Q. When the Priſoner adviſed you not to be ſo violent or you muſt take the conſequences, did you conceive this advice was given you to ſave you from any miſchief, or to intimidate you from doing your duty.

A. The Priſoner told me that he adviſed me as a friend, as he had underſtood I had driven ſome of the Delegates out of the ſhip, by threatening to put them to death. I had afterwards ſome converſation with the Priſoner, and aſked him why he wiſhed to ſend perſons on board to force my people into the buſineſs; that they had no complaint, and wiſhed to have nothing to do with it. He told me it was for the good of the whole, and they *muſt* have to do with it.

Q. You have ſtated that when the Priſoner's ordering the Pilot to get the ſhip under weigh, and carry her cloſe to the Sandwich as poſſible, the Pilot told him it was an improper time of tide. That he told the Pilot if he did not chuſe to get her under weigh, he would find means to make him, pointing to the rope-yards. Were the yard-ropes rove previous or ſubſequent to the Priſoner's coming on board? A. The yard-ropes were rove by a man belonging to the Pylades, and I think by the Priſoner's orders. I ſaw the Priſoner ſpeaking to the man; and he immediately went up and rove the yard-ropes. They were rove while the Priſoner was on board.

Q. Who directed the management of the ſhip after ſhe was got under weigh? A. There was no ſail ſet, ſhe dropt with the tide.

Croſs examined by PARKER.

You have related, in anſwer to the queſtion already aſked, "that I adviſed you as a friend." I now beg you to recollect, whether when coming on board of the Hound, I did not ſay to you, Capt. Wood, the differences exiſting in the fleet are of a very unpleaſant nature; I feel myſelf, in ſome degree, under an obligation to you, therefore I would adviſe you to have nothing to do at preſent, but ſuffer the Hound to proceed as the reſt of the ſhips, as I had no doubt, in the courſe of a day or two at furtheſt, that the Officers would reſume their former command. A. I recollect when you came on board, you ſaid you was

under

under obligations to me, for allowing you to go back to the Tender, for which reaſon you had come to adviſe me not to be ſo violent. I do not recollect your ſaying any thing of the Officers reſuming their command.

Q. By the Court. When the Priſoner had the hands turned up, and harrangued them forward, do you mean that the Priſoner ordered the Boatſwain or the Boatſwain's Mate to turn them up? A. I heard him deſire the Boatſwain's Mate to turn them up.

Q. Was it by way of an order or requeſt? A. I heard him order the Boatſwain to turn them up, and ſend them forward.

NICHOLAS FLATT, *third Lieutenant of the Sandwich, ſworn.*

Q. Do you know the Priſoner? A. Yes, Sir.

Q. Did he belong to the Sandwich, and in what ſituation? A. As a ſupernumerary.

Captain MOSS, *(the Proſecutor.)* Relate to the Court what you know of the Priſoner's conduct, during the exiſtence of the Mutiny on board the Sandwich.

A. I did not know the Priſoner at the beginning of the Mutiny. The firſt of my knowledge of him was, on Admiral Buckner's coming on board, I ſaw the Priſoner give a paper to Admiral Buckner, ſtating the grievances of the fleet. I heard the Priſoner ſay that he was Preſident of the Delegates of the fleet. I ſaw the Priſoner going in boats frequently, and acting as a commander in them. I do not remember more, further than his being very active in attending the Committee. On the 2d June the Priſoner deſired me to come over on the ſtarboard ſide of the deck and receive orders. He ſaid, "You are ordered, Sir, to receive a hundred and eleven men out of the Leith tender, and to give a receipt for them as uſual, and we are anſwerable for what you do." I replied, that I had no orders to receive men from Admiral Buckner, and that my receipt was of no uſe, having no command. He again ſaid,—"We are anſwerable for what we do." I muſtered the men, and gave the receipt. I was again ſent for by the Committee the 4th of June, to give a receipt for fifteen men from the Lynn tender, which I complied with, I was told by Davis, that it was the orders of the Priſoner and the Committee. On or about the 9th of June I was as priſoner in the Ward Room; I ſaw the Priſoner paſſing under the ſtern of the ſhip in a boat. I heard three cheers given over-head; the Priſoner turned round, and ſaid, that he was going on board of the Director to bring a ſpring on her cable, and that he would ſend her and them (meaning, as I believe, the Repulſe, which was aground) to the Devil. I ſaw the Priſoner go on board the Director; I ſaw the ſpring on her cable, and a very heavy fire commence from that ſhip on the Repulſe. I did not ſee the Priſoner return on the 12th of June: I was releaſed from confinement on the afternoon of the ſame day. I

was confined again, but by whoſe order I do not know; on or about Monday the 14th, the Priſoner came down in the Ward-room to releaſe all the Officers. He ſaid, we were at liberty to walk the deck, but were not to have any converſation with the people. The Priſoner ſent for Mr. Mott, the Lieutenant, the ſame day that we were releaſed. Mr. Mott came up, and all hands were called by the Priſoner's orders. He told them that Mr. Mott was to go on ſhore to bring off his Majeſty's pardon. He aſked the people whether they were willing that Lieutenant Mott ſhould go. The anſwer was, that they were willing, and wiſhed that the ſhip, meaning the Sandwich, ſhould be given up to the Officers. Some of the men wiſhed the white colours to be hoiſted, and the blue hauled down, before Lieut. Mott went. Lieut. Mott called out to lower the blue enſign and hoiſt the white. He went in the boat and ſeveral people followed. The Priſoner then ſaid to me that if we changed the colours, there were three ſhips aſtern that would fire at us. I called out to ſtop the colours from being hoiſted till Lieut. Mott ſhould return. Lieut. Mott agreed with me, and ſo did the people. Lieut. Mott went on ſhore and brought off the Proclamation. The Priſoner ordered all hands to be turned up, and it was read on the quarter deck by one of the Clerks, who was Deputy Purſer. The Priſoner then ſpoke to the people, and aſked them whether they were willing to accept of His Majeſty's Pardon, and to give the ſhip up to the Officers, or to let her remain with us. The people all anſwered, "to the Officers," excepting two of the Priſoner's now in cuſtody, Jones and Davis, who ſaid the ſhips aſtern would fire upon us, if we altered our colours; and the Priſoner alſo ſaid ſo. Lieut. Mott, myſelf, and the people called out, to change the colours, which was done. I ſaid, they might fire and be damn'd if they pleaſed. The Priſoner ſaid we, will give three cheers, which was done. The Priſoner joined in them. I demanded the key of the magazine and ſmall arms, which the Priſoner complied with; ſaying, here are the keys of the magazine, and the charge of the ſhip I give up to you, being a ſenior Officer. I gave orders after the anchor was ſecured, to unmoor ſhip. The Priſoner came to me and ſaid, if we offered to unmoor, the ſhips aſtern would fire on us. I told them I did not care, it did not ſignify. The Priſoner then ſaid he was ready to come and heave at the capſtan with us. The Priſoner afterward came to me and deſired me to confine him, as he ſuppoſed he ſhould be confined. I told him I would order him to a cabin, and put two centinels over him. He refuſed going, but ſaid he would heave at the capſtan. About half paſt nine in the evening of Tueſday, I conſulted with the Officers, whether it would be proper to confine the Priſoner before we got under weigh, or wait till we got under the guns of the garriſon of Sheerneſs. It was agreed we ſhould confine him immediately. Lieutenant Mott and myſelf, went on deck, found the Priſoner on the quarter deck and a Lieutenant Pamp cloſe by him. Lieutenant Mott, laid hold of the

Priſoner by the collar and brought him down to the lower deck, put him into Lieutenant Pamp's cabin, and placed two centinels over him. The morning after I went down about four o'clock, and put the Priſoner in irons. I ſaw the Priſoner ſent on ſhore by Captain Moſs's order.

Q. Capt. Moſs. At the time you put the Priſoner in irons, was it in conſequence of any new matter or ſigns of violence on his part?

A. None. It was by Admiral Buckner's orders.

Q. Previous to your releaſe, had the Major part of the men of War either ſailed or ſeperated from the Nore? A. Yes, ſeveral had ſeparated to the Thames.

Q. What reaſons were given for your releaſe, and by whom? A. The Priſoner came down and releaſed us the laſt time himſelf. He did not give any reaſon for releaſing us.

Q. Do you know whether the Priſoner had been accoſted by any perſon or perſons demanding your releaſe? A. I was informed that a Black man, named John Campbell, had demanded our releaſement; I heard it from Lieut. Mott.

Court. When you ſaw the Priſoner go to the Director from the Sandwich, was any body in the ſtern-ſheet of the boat with him?

A. I don't remember obſerving any of the boat's crew.

Court. In the courſe of your evidence, you have diſtinguiſhed the Priſoner by the name of Preſident; do you know if, during the exiſtence of the Mutiny, the Priſoner ever aſſumed any other title, or if ever he was addreſſed by the crew by any particular mark of diſtinction? A. No. I do not know that he had any other diſtinction than that of Preſident of the Committee.

Q. What command did you obſerve the Priſoner give, which makes you ſay he acted as a Commander in the boats? A. He ordered the boats to be manned, which was complied with. When he went over the ſide, the hands were piped over to attend him. The Sideſmen and Boatſwain's Mate attended.

Q. If you was confined, how could you ſee the Sideſmen and Boatswain's Mate? A. We were confined but for a ſhort time. We were confined on Sunday, and releaſed the ſame day.

Q. After the Officers were ſuſpended from their command, who was underſtood to be the principal commander among the Mutineers?

A. The Maſter was appointed to do duty at the firſt breaking out of the mutiny, and the reſt of the time one Davis, now a priſoner.

Q. At the time Davis commanded the Sandwich, what capacity was the Priſoner in? A. I don't know; he was in the Committee.

Capt. Moſs. Do you remember ſeeing during the mutiny a plan of defence hanging up on the Sandwich's quarter deck, or under the poop, or in any other place. A. No, I do not,

Croſs examined by PARKER.

Q. You have related being on the quarter deck after the return of Lieut. Mott from Admiral Buckner with the Proclamation. Was you preſent the whole of the time of its being read and taken into conſideration? A. Yes, I was.

Q. Do you recollect my begging the ſhip's company to deliver up the ſhip to their Officers, and truſt to his Majeſty's clemency?

A. I don't recollect your begging; I recollect only your aſking them whether they were willing.

Q. When the White colours were hoiſted, did you hear me ſay publicly it was the happieſt moment I had felt a long time? A. I do not recollect; the noiſe and confuſion might prevent me from hearing.

Q. When the fore topſails were looſe, did I not in the moſt reſpectful manner come on the quarter deck to you, and point out to you that the Inflexible, and two more line of battle ſhips aſtern, would, I was afraid, from their violent tempers, get ſprings on their reſpective ſhips, ſo as to rake the Sandwich every ſhot.

Q. Are you not ſatisfied that I did not dictate, but beg in that one inſtance to be excuſed, for adviſing the Sandwich might not be got under weigh for her own and people's ſafety, until ſhe was leſs obſerved by the ſhips before mentioned. A. You did come in a manner fully reſpectful, and offered that opinion.

Parker. I put no further queſtions, as I ſhall call the witneſs again on my defence.

WILLIAM LEVINGSTON, *Boatſwain of the Director, ſworn.*

Proſecutor. Did you hear the charge read? A. Yes.

Proſ. Do you know the Priſoner? A. Yes.

Proſ. Did he belong to the Sandwich? A. He came from her in her boat.

Proſ. Do you remember ſeeing the Priſoner on board the Director the day the Repulſe got a-ground, attempting to go into Sheerneſs Harbour? A. Yes, I did.

Proſ. Relate to the Court his proceedings from the time of his coming on board till his departure? A. When the Priſoner came on board, he came aft on the quarter deck; he requeſted a boat to go with a flag of truce on board the Repulſe; then he ordered all hands to be called; the boat was denied him; then he wanted to ſlip the ſhip's cables to go along-ſide, which was denied; he then ordered a ſpring to be got on the cable, which was the beſt bower, to bring our broadſide to bear on the Repulſe; when the ſpring was on, he ordered it to be hove in, and to bear away the beſt bower; as the ſhip came round, he ordered them to point their guns at the Repulſe; there was a gun fired from the Repulſe from the quarter deck; the Repulſe was then a-ground; I don't know whether the gun was ſhotted; the Priſoner gave orders

orders to fire from all decks at the Repulſe, as ſhe had fired on us; which order was repeated by one of the Delegates of the Director. The Priſoner then going off the quarter deck, I ſaw no more of him, I being upon the poop. The order to fire upon the Repulſe was complied with.

Prof. How long did the Director keep a heavy fire on the Repulſe? A. To the beſt of my knowledge for the ſpace of half an hour; two and three guns were fired at a time from each deck on the larboard ſide.

Prof. Did you ſee any other ſhip with a ſpring on her cable firing at the Repulſe at the ſame time? A. I ſaw the Monmouth firing at the Repulſe at the ſame time, but I could not diſcern a ſpring.

Prof. Riding as the ſhips were to the flood tide, could the broadſide of any ſhip be brought to bear in your opinion without a ſpring?

A. Not in the ſituation the Repulſe lay.

Prof. Who had the command of the Director at the time the Priſoner came on board? A. Joſeph Mitchell, the Captain of the Forecaſtle.

Prof. Was it to him the Priſoner applied to ſlip the cables?

A. He was called; but I did not ſee him come aft at that time.

Prof. During the time the Priſoner was on board, do you know that the Priſoner either pointed or fired a gun? A. No, I do not know.

Prof. Did you notice any other perſon with the Priſoner?

A. I ſaw him that day, for the firſt time, come on board alone. I took no notice of any other perſon.

Prof. Who appointed Joſeph Mitchell to the command of the Director? A. The Committee of the Director.

Prof. Had Mitchell that command before the Priſoner came on board? A. Yes.

Prof. In the ſituation the Repulſe lay aground, could ſhe bring any guns to bear upon deck? A. To the beſt of my knowledge ſhe could not, without it were ſtern-chaſers.

Prof. What part of the Repulſe was the gun fired from?

A. The larboard ſide of the quarter deck.

Prof. What was the poſition of the Repulſe with reſpect to the Director? A. To the beſt of my knowledge her bow was a little to the ſouthward. She was almoſt end on.

Court. Did the Priſoner order the guns of the Director to be pointed at the Repulſe, before the gun was fired from that ſhip, or after?

A. Before the gun was fired.

Court. Who did the Priſoner aſk for the boat, and who denied her?

A. Joe Mitchell was called after, but I did not ſee him.

Court. How was the boat denied? A. By a general voice of the people on the quarter deck, which ſaid "No, no."

Court. Was the order for ſlipping the cables refuſed by the general voice of the people? Yes, they ſaid "No!"

Court.

Court. How near the Priſoner was you when he ordered the guns to be fired? A. I was then ſtanding on the arm-cheſt on the ſtarboard ſide, on the break of the poop. The Priſoner was then on the quarter deck, about the place of the foremoſt binnacle.

Court. Who ordered them to ceaſe firing? A. I don't know: I was on the poop.

Court. Did the Priſoner remain on board till the Director's fire ceaſed? A. I do'nt know: I did not ſee him.

Croſs-examined by PARKER.

Parker. Where was you at the time the boat was refuſed me?

A. I was on the poop on the forepart.

Parker. Had there been a gun fired at that time from the Director?

A. Not to my knowledge.

Priſoner. Do you recollect my addreſſing the ſhip's company of the Director, and pointing out to them how dreadful a thing it was for one brother to be firing on another; ſaying, if they would allow me the boat, I would take a flag of truce in it, and repair to the Repulſe, which I did not doubt would ſtop the effuſion of blood; that what might happen to myſelf I ſhould not conſider of any conſequence, even if I loſt my life, to ſave ſo many. Do you recollect ſuch a converſation before the boat was denied me? A. Yes I do recollect ſuch a converſation; when you aſked for a flag of truce, I heard you ſay that you would take the flag of truce and repair to the Repulſe, which you did not doubt would ſave innocent blood from being ſpilt; I heard you uſe the words, "'if I loſe my life."

Court. Was it before or after the Priſoner had given orders to fire that this converſation took place? Before he gave orders to fire.

Parker. Was there any preparation for a ſpring on the cable, or was there any ſpring before I came on board? A. There was none, neither preparation or ſpring to my knowledge.

Court. Could preparations or ſpring have been made, without your knowing it? A. Yes there might.

SAMUEL HELLAW, *ſworn.*

Proſ. What are you? A. Carpenter of the Director.

Proſ. Do you know the Priſoner? A. Yes, I have ſeen him on board the Director.

Proſ. Do you remember ſeeing the Priſoner on board the Director on the day the Repulſe got aground, in attempting to go into Sheerneſs harbour? A. Yes.

Proſ. Relate to the Court his proceedings from the time he came on board till his departure. A. The firſt word I heard the Priſoner ſay, he aſked for a flag of truce, to go alongſide the Repulſe, to ſave blood from being ſpilt. It was denied him by the general voice of the ſhip's com-

company; and then the Priſoner wanted the ſhip to go alongſide the Repulſe, then aground. That was refuſed alſo by the general voice on the quarter-deck; and then the Director's broadſide was brought to bear by a ſpring on the beſt bower cable, and then the ſhip's company began to fire. The Priſoner was on the quarter-deck. The Repulſe then fired a gun from the larboard quarter; the Priſoner then ſaid they had returned the fire; he ordered them to level their guns, and then they continued firing from all the decks. I never ſaw the priſoner after that.

Proſ. How long did the Director keep a heavy fire on the Repulſe?

A. To the beſt of my knowledge about three quarters of an hour from begining to ending.

Proſ. Did you ſee any other ſhip with a ſpring on her cable firing on the Repulſe at the ſame time? A. I ſaw the Monmouth, with, I believe, a ſmall anchor and hawſer carried out, but I believe no ſpring on her cable.

Proſ. Riding as the ſhips were to the ſtood tide, could the broadſide of any ſhip be brought to bear, in your opinion, without a ſpring?

A. Not to my knowledge.

Proſ. Who had the Command of the Director when the Priſoner came on board? A. Joſeph Mitchell, Captain of the forecaſtle.

Croſs examined by PARKER.

Q. Do you recollect whether all the guns on the larboard ſide of the quarter deck of the Director were caſt looſe before I came on board?

A. I can't ſay whether they were all caſt looſe; ſome of them were.

Proſ. Did the Priſoner apply to him to ſlip the cable?

A. I cannot ſay.

Proſ. During the time the Priſoner was on board, did you ſee him point or fire a gun?

A. No, I did not.

Q. Who appointed Mitchell to be Commander?

A. I cannot tell.

Q. Do you think, in the poſition the Repulſe lay aground, ſhe could have pointed any guns at the Director?

A. None, except her ſtern chaſers.

Q. For what purpoſe did you ſuppoſe the Priſoner wiſhed to carry the Director alongſide the Repulſe? A. I can't ſay.

Q. Was there any inclination appearing among the ſhip's company to fire at the Repulſe before the Priſoner came on board the Director?

A. There were ſeveral guns caſt looſe.

Q. Do you know with what intention they were caſt looſe.

A. I do not.

Q. Did it appear to you that the people of the Director fired at the Repulſe in conſequence of the Priſoner's orders? A. I really can't ſay.

Q. Did you hear the Priſoner order a ſpring under his bower cable?

A. I

A. I did not.

Q. Was there any ſpring on before he came on board?

A. I can't ſay.

Q. Was it poſſible for a preparation for a ſpring being got on the beſt bower cable being attempted without your knowledge, you having permiſſion to viſit every part of the ſhip. A. I only ſaw the hawſer up. I ſaw it got up before I ſaw the Priſoner on board.

Q. Was the Repulſe aſhore when the hawſer was got up, or making any movement that made a ſpring neceſſary on the cables of the Director to ſtop her progreſs, or bring her fire to bear.

A. To the beſt of my knowledge the Repulſe was not then moving.

Q. Did you diſtinctly hear the Priſoner ſpeak aloud to the people to level the guns? A. I did.

Q. Did he appear to be acting upon his own mind, or to be taking inſtructions from any of the people on board the Director?

A. From his own mind.

THOMAS BARRY, *Seaman on board the Monmouth, ſworn.*

Q. Do you know the Priſoner?

A. Yes, very well, by ſight: I have ſeen him twice in my life.

Q. Did you ſee the Priſoner on board the Monmouth at the time the Repulſe was attempting to eſcape into Sheerneſs harbour. A. Yes I did.

Q. Relate to the Court ſuch particulars as you ſaw relating to his conduct at that time on board the Monmouth.

A. I did not ſee him when he firſt came on board: I ſaw him on the forecaſtle; when he firſt came on board, he took the command of all the Monmouth's forecaſtle guns. I cannot ſay whether the gun which I attended was fired ſix or ſeven times at the Repulſe.—When the gun was going to be loaded the ſeventh time, I ſpoke to him, and told him not to put the cartridge in at that time; with that I got a worm, and wormed the gun out; he immediately ordered the gun to be ſponged. The gun was ſponged and loaded. After it was loaded, he was not content with a nine pound ſhot that was in her, but took a crow bar, and put the thick end in firſt. I immediately took it out of his hand, and he gave me a ſhove on the breaſt, and I fell over the heel of the ſpare top-maſt. After that I was kept forward on the forecaſtle by Vance, who was Quarter-Maſter, and Captain of the ſhip; I was an hour and an half there; I was then ordered to go below, and ſtay in my birth till I had orders to come up. I did not ſtay down, but came on deck; Parker, the Priſoner was ſtanding upon the heel of the ſpare top-maſt. He ordered Vance to get our ſtream cable up to bend our ſtream anchor. Vance made anſwer that he could not do it. The Priſoner ſaid, damn it, ſlip your bow, and go along ſide the Repulſe, and ſend her to Hell, where ſhe belongs to, and ſhew her no quarters in the leaſt. After that

he

he told Vance he could not ſtay any longer on board the Monmouth, He ſaid he would go on board one of the other ſhips of the fleet, and ſend her after the Leopard, and ſend her to Hell likewiſe.

Capt. Moſs. Were the guns in general on the larboard ſide of the Monmouth fired on the Repulſe?

A. Yes, Sir, they continually kept firing.

Q. Had the Monmouth, before your firing at the Repulſe, laid out a ſmall anchor and hawſer, or a ſpring on her cable, to bring her broadſide to bear?

A. We had a ſmall hawſer out abaft, and took it to the beſt bower buoy.

Q. Was the jib and fore topmaſt ſtay-ſail hoiſted to eaſe the hawſer, and to favour the broadſide of the Monmouth to bear on the Repulſe?

A. Yes, they were.

Q. Do you know by whoſe order the jib and ſtay-ſail were hoiſted?

A. Yes, by order of Mr. Vance, who commanded.

Q. Did you ſee any other marks of activity in the Priſoner while he remained on board? A. Nothing elſe.

Q. During the time the Monmouth kept her fire on the Repulſe, did the Priſoner point or fire any of the guns? A. Yes, the aftermoſt gun on the forecaſtle, on the larboard ſide.

Q. How long did the firing laſt?

A. I ſuppoſe about five and twenty minutes.

Q. How near was you to the Priſoner when he was ſtanding on the heel of the top-maſt, and had the converſation with Vance?

A. I was ſtanding by the bits, juſt before the fore-maſt.

Q. Which gun was you at on the forecaſtle?

A. The aftermoſt gun on the larboard ſide.

Q. Do you know whether any guns were fired from the Monmouth before the Priſoner came on board?

A. Yes there were, before I ſaw him on board.

Croſs-examined by PARKER.

Q. Had you fired or aſſiſted in firing any guns yourſelf before you firſt ſaw me on board?

A. No, Sir.

Q. Had there been guns fired from other parts of the ſhip before the forecaſtle guns were fired?

A. Yes, the quarter deck guns were fired.

Q. You have been telling a great deal about Hell, I wiſh to know if you have been promiſed any thing, or any promotion, for advancing the helliſh account?

A. No, I never was promiſed any thing.

Parker. I ſhall bring witneſſes to diſprove what you ſay.

JOHN SOMERLAND, *Boatſwain's Mate of the Monmouth, ſworn.*

Q. Do you know the Priſoner? A. Yes

Q. Did you ſee the Priſoner on board the Monmouth at the time the Repulſe was aground, endeavouring to eſcape into Sheerneſs harbour. A. I did.

Q. Relate ſuch particulars of his conduct as you ſaw in acts of violence againſt the veſſels.

A. I ſaw a great many people aſſembled on the foreca ſtle, I went up to ſee what was the matter, and I ſaw the Priſoner ſtanding abaft the the foremaſt upon ſomething. He was going to make a ſpeech; and Capt. Vance, who acted as Captain of one of the ſhips, wanted to ſpeak firſt. The Priſoner would not allow it. He would inſiſt upon the ſhip ſlipping her cables. There was no other cable bent at the time. The ſhip's company would not agree. He ſaid he would go on board one of the outſide ſhips, and make her ſlip, and go alongſide of the Leopard, and ſend her to Hell, where ſhe ought to go. During this time the Repulſe got off the ground. The Priſoner diſmounted from the place he was on, ſhook his fiſt, and ſaid "Damn me, ſhe is off!" He directly called away the boat's crew of the Sandwich, in which he went himſelf.

Captain Moſs. When the Monmouth was firing upon the Repulſe, did you ſee the Priſoner any way active in pointing the guns, or otherwiſe directing them to be fired?

A. I did not ſee it myſelf.

Q. Was there a hawſer carried out for the Monmouth to bring her broadſide to bear upon the Repulſe?

A. There was one brought alongſide by another ſhip's boat; that was made faſt; and her broadſide thrown to bear upon the Repulſe.

Q. What was the hawſer made faſt to?

A. The hawſer was made faſt to the cable: they wore away the beſt bower cable, and brought the Monmouth to bear on the Repulſe, having broken a ſmall tow line that was before made faſt to the buoy.

Q. Did the Priſoner give any directions about carrying the tow-line, or getting the ſpring upon the cable?

A. Not to my knowledge.

Q. At the time the Monmouth kept the heavy fire on the Repulſe, did you ſee the Priſoner with his cloaths off, to favour any exertions he was about? A. I did not.

Q. How long do you ſuppoſe the heavy fire from the Monmouth on the Repulſe might laſt.

A. I believe about two hours, from beginning to end.

Croſs-examined by PARKER.

Q. Do you recollect the time I came on board the Monmouth?

A. I do not.

Q. Do

Q. Do you imagine I was on board at the commencement of the Monmouth opening her fire on the Repulſe?

A. I don't know; there were a great many of the Sandwich's people.

Parker. I ſhall not aſk any queſtion; I ſhall be able to diſprove what he has ſaid.

Court. Did the Monmouth or Director fire firſt at the Repulſe?

A. The Monmouth.

Captain Moſs ſaid he had no other witneſſes to examine, except with reſpect to the facts already ſworn to, and unleſs the Court thought it neceſſary, he would not take up their time by calling any more witneſſes.

The Court agreed there was no neceſſity for the Proſecutor to proceed with any other evidence.

The evidence for the Proſecution was then declared at an end; and the Preſident aſked the Priſoner when he would be ready to enter upon his defence.

Parker ſaid it would be neceſſary he ſhould take ſome time in preparing his defence; he wiſhed to be allowed extracts of the evidence.

The Deputy Judge Advocate informed him he could not furniſh any extracts to him.

Preſident. Can you get ready by tomorrow?

Parker. I ſhall not be able to get ready tomorrow.

Preſident. Will you be ready on Monday?

Parker. I think I ſhall; I wiſh to have a liſt of the witneſſes who have been produced againſt me.

Judge Advocate. You ſhall certainly have that.

Preſident. You ſhall have every indulgence with reſpect to preparing for your defence that can poſſibly be granted you; but you ſhould conſider how many perſons whoſe ſervices are of conſequence to the Country you detain, by delaying your defence.

Parker. I ſhall be ready by Monday.

Preſident. The Court will meet *pro forma* to-morrow morning.

Adjourned at five o'clock, till to-morrow at nine o'clock.

THIRD DAY's TRIAL.

Neptune, Saturday, June 24.

The Court met, purſuant to adjournment this morning at Ten o'clock.

The JUDGE ADOCATE informed the Priſoner, that his requeſt to have extracts of the evidence had been taken into conſideration, but as a compliance with ſuch a requeſt was quite unuſual, it could not be granted

Preſident. The Court has met to conſider and determine as to the time which can be allowed you to prepare for your defence. I think it neceſſary to inform you, that you have not to expect *one moment* longer than MONDAY MORNING.

Judge Advocate. In the meam time whatever you may be in want of, the better to enable you to prepare for your defence, ſhall be granted you.

The Solicitor of the Admiralty delivered to Parker a copy of his examination taken before the Magiſtrates at Sheerneſs, which the Priſoner had previouſly requeſted.

The Judge Advocate then gave the Priſoner a quantity of paper, pens, and ink, and told him he ſhould have every thing he might afterwards think neceſſary.

Preſident. You have had very particular indulgences granted you, more than were ever ſhewn to any man in a ſimilar ſituation. I hope, therefore, you will take care to be fully prepared by Monday

Parker ſaid he required no longer time; he ſhould be perfectly ready by that time. He returned thanks to the Court for the favours ſhewn him. The deportment of the Priſoner was every way reſpectful and conſiſtent, and he appeared perfectly compoſed.

The Court then adjourned till Monday morning, to ſit at nine o'clock preciſely.

FOURTH DAY.

The Court having met at 9 o'clock, and the Priſoner brought in, the Judge Advocate informed him, that in conſequence of his requeſt, an Expreſs had been ſent to Sheerneſs for William Hobbs, George Nicholes, and Samuel Beer, three of the men belonging to the Monmouth, as well as a perſon of the name of Holliſter, who was one of the Delegates; all theſe perſons were on board, for the Priſoner to call if he ſhould think proper.

Preſident.—You are now on your defence, which you will make in the beſt manner you can, and afterwards ſupport it by Evidence.

PRISONER's

PRISONER'S DEFENCE.

GENTLEMEN,

As I have been at ſea from my youth, I hope nothing will be expected from me but a narrative of plain facts. I cannot dreſs up my thoughts in the pompous language of a lawyer: could I have procured aſſiſtance I might have been enabled to have expreſſed myſelf with more propriety.

In the firſt place, I have to return thanks to this Court for giving me the time they have to defend myſelf againſt the very heavy charges brought againſt me. Nothing but the conſciouſneſs of the integrity of my intentions with reſpect to the Mutiny, and the reflection that I did not enter into it until two days after it commenced, could have ſupported me againſt ſuch heavy charges ſworn to by ſo many witneſſes, and a firm conviction that I entered into it ſolely with the view of repreſſing the dangerous ſpirit I ſaw prevail in the fleet. The firſt witneſs called againſt me was Vice-Admiral Buckner, who ſays he often ſaw me, and he acknowledges my behaviour to him was always reſpectful. I never waited on Admiral Buckner without the expreſs orders of the Delegates; and when I did, ſtudiouſly avoided ſporting with his feelings, by improper behaviour; on the contrary, I couched every meſſage I had to deliver in the moſt reſpectful terms I was able. It may be aſked how I came to be the perſon pitched upon to deliver ſuch meſſages, and act as the principal in the buſineſs. To this I can only anſwer that ſuch was the caſe. The Delegates inſiſted on my aſſuming the ſituation I appeared in, and it was impoſſible for me, or any individual under ſimilar circumſtances, to have reſiſted ſuch appointment. I knew nothing of the Mutiny till it had brokeout. As ſoon as I ſaw that fatal ſpirit of Mutiny which prevailed, I immediately thought it my duty, aud I endeavoured, as far as in me lay, to ſtop the further progreſs of it. However melancholy have been the events which have taken place, I am convinced more dreadful conſequences would have enſued, had I not acted the part I have done — conſequences which I heſitate not in ſaying, I have prevented at the hazard of my life; and feeling that I have done whatever was in my power to leſſen the evil, which I could not wholly prevent, I can wait the deciſion of the Court with calmneſs and reſignation. Admiral Buckner ſays he was not received with that reſpect due to his rank. I am ſorry that it ſhould have been ſo, but that he cannot impute to me, as he was on board before me, and I was at the time on ſhore, attending a proceſſion, and the Admiral himſelf acknowledges that when I did go on board, I went on the quarter deck, and ſaid, it muſt be owing to ſome miſtake, he was not received with the honours due to him, and I offered that the men ſhould man the yards. He acknowledges an attempt was made to man the yards, which afterwards ſubſided. It was ſo, an attempt was made by me to that effect, though at that time it was a thing dangerous to propoſe, and was done at the riſque of my life, for it was ſignified if it was complied with, that the Inflexible, and the other ſhips would fire upon and ſink the Sandwich; a report having been propagated that Admiral Buckner was not a fit perſon to reconcile the Fleet with the Admiralty, which ſo diſcompoſed our people, that the reſpect intended to be ſhewn was defeated. Mr. Bray came on board

from

from the Inflexible, where he ſaid he had found the tompions out of the guns, the matches ready, and every appearance of hoſtility. During the whole continuance of the mutiny there were daily meetings of the Committee of Delegates, of the ſhips. The Delegates received propoſitions, for all meaſures originated on board the Inflexible, and there is not a man of the whole Fleet who does not attribute the melancholy conſequences that took place to the violence of the people of the Inflexible. It was to prevent thoſe conſequences I went on ſhore to Admiral Buckner, and when I was half paſſage to ſhore, I firſt obſerved the Admiral's flag down, and the red one in its ſtead. In anſwer to what Admiral Buckner ſaid reſpecting the two marines, I do not deny being commanded by the Delegates of the Fleet to act as I did. The circumſtances were theſe: the people called Delegates repreſenting the Ship's Company were refreſhing themſelves with their uſual allowance, which was a pint of beer each man. In the mean time they were informed that two Marines were in cuſtody of the main-guard, for approving of the conduct of the Seamen. The Delegates deſired me to enquire if it was ſo. I did ſo. The Officer ſaid he had no ſuch perſons. We were informed that the two Marines were at Commiſſioner Hartwell's Houſe. We accordingly went and told him to releaſe the men, and ſend them on board, were their conduct ſhould be enquired into, and the men puniſhed if they deſerved it. We ſaw Admiral Buckner, who ſaid the marine had uſed very improper language at a houſe at Queenborough. He had no objection to our examining them. One of them appeared in a ſtate of intoxication. I intorrogated them, and Admiral Buckner ſaid, Parker, you are aſking very proper queſtions. The men were taken and ſent to the fleet, and the next day ſent aboard their reſpective ſhips. It was requeſted by the Admiral they ſhould be confined, and I underſtood that was complied with. I ſhall not obſerve further relative to my conduct on account of the two Marines, but I beg leave to ſtate this queſtion to the Court, whether four men could have taken them away from a ſtrong guard, and in the face of the garriſon, unleſs with the approbation of the Commiſſioner and Admiral. I repeat, that I never did behave with any the leaſt diſreſpect towards Admiral Buckner; I remember a converſation wherein Admiral Buckner ſaid, conſider what muſt have been my feelings at ſeeing my flag ſtruck. I replied, I had nothing to do with the ſtriking his flag. I told him I could judge what his feelings muſt have been on ſuch an occaſion; that I had feelings of my own, and could eaſily participate in his, but that I could not prevent them, as I was but a ſingle individual among many. Having done with Admiral Buckner's evidence, I think it but juſtice to acknowledge that both Admiral Buckner, and Commiſſioner Hartwell, did every thing that lay in their power to ſatisfy the minds of the fleet. The next evidence was Lieutenant Juſtice, he ſays, he knows nothing of me. The third was Captain O'Bryen, who ſays, he knows nothing to the diſadvantage of me. Captain Fancourt ſaid, he never ſaw me before. Captain Cobb, of the Lion, depoſed to the ſame effect; as did Captain Parr, of the Standard.

Mr. John Snipe depoſes that on the afternoon of the 14th of May he was called upon to attend the puniſhment of a man of the name of Campbell, and that I ordered him a dozen laſhes. I do not attempt to deny that I did act as he has ſworn. I was commanded to ſee the puniſhment inflicted, but Mr. Bray was conſulted as to the propriety of inflicting ſuch a puniſhment for the offence he had committed, which was for getting beaſtly drunk, at the ſame time aſſerting he had drank nothing but ſmall beer. I recommended

mended to the whole ſhip's crew to abſtain from liquor until the whole of the buſineſs was ſettled, telling them, if they did not, that the puniſhment their own juſtice had inflicted on that man, ſhould be inflicted on any one offending. As to the ſick man in irons, it was a man confined for diſreſpect to Capt. Moſs; the anſwer given by me on that occaſion to Mr. Snipe ſufficiently ſhews that I did not mean to interfere with his profeſſional concerns; and I hope it will have the effect of ſhewing to the Court, that I was alive to the ſufferings of my fellow creatures. Mr. Snipe has ſaid, that he had leave to go on ſhore, on his promiſing to return again, but that he took care not to return till the ſhip was under the command of its officers. I ſhall make no comment on this part of his evidence, but I ſhall only aſk, whether it was praiſe-worthy, at a time when the ſeamen were labouring under inſurable diſorders, for a Surgeon to leave the ſhip merely becauſe his ſituation was not ſo comfortable as he could have wiſhed.

I next come to the evidence of Capt. Surridge, of the Iris; he ſays he has ſeen me once at the Commiſſioner's Houſe, and that he afterwards ſaw me come up to the Commiſſioners at the Jutty Head, where he recollects my delivering to him the Articles containing the final determination of the North Sea ſquadron. I do declare that I had no converſation with the Commiſſioners, but left it entirely to them, to ſatisfy themſelves that the articles I had preſented really did contain the demands of that fleet. Capt. Surridge has declared that he ſaw no diſreſpect on my part towards him, therefore I ſhall not dwell further on his evidence.

The next evidence is Capt. Dixon of the l'Eſpion, but as any obſervations in his evidence are anſwered by what I have obſerved with reſpect to Admiral Buckner, I ſhall decline commenting on it.

I now come to the evidence of Captain Wood of the Hound, who has depoſed, that I went on board his ſhip, and adviſed him not to be ſo violent. I certainly did go on board, but I had no other motive but that of the perſonal ſafety of the Captain, and the preſervation of the ſhip. He ſays he was ordered out of his ſhip. In anſwer to this, I ſolemnly aſſert I did not know that he was ordered to leave his ſhip, the orders were not certainly given by me. As to my having ſaid I would make a beef-ſteak of the Pilot at the yard-arm, I ſolemnly declare I did not make uſe of ſuch expreſſions. I do not recollect the Pilot's letting go the anchor, I declare to God I know nothing of it. If I was before God I would deny it. It is very poſſible Captain Wood might be miſtaken as to my being the perſon who gave the order.

Lieutenant Flatt depoſes he does not know me. As I ſhall have occaſion to aſk Lieutenant Flatt ſome more queſtions, I ſhall not make any further obſervations on his evidence at preſent.

Mr. Levingſton, boatſwain of the Director, depoſes that he ſaw me on board the Director at the time the Repulſe was on ſhore, that I aſked him for a boat, obſerving, that it might be the means of ſaving many lives. He recollects my giving the word fire. After which Mr. Samuel Ellis depoſes, that he heard me addreſs the ſhip's company, and that ſoon after the guns were fired, but that he did not hear me order it. In the firſt place. In order to account for my being on board the Director—when the demands of the North Sea fleet were known, a boat went round to the whole of the fleet with a band of muſic playing God Save the King, Rule Britannia, and Britons

Strike

Strike Home. I was desired to be on that duty; Matthew Hollister informed me that the Repulse was getting under weigh, and that the Director was getting a spring on her cable, I was then commanded on board the Director. I saw the guns on the quarter-deck cast loose. I pointed out the impropriety and cruelty of one brother fighting against another; and I begged for a flag of truce, which was refused. I then sounded their dispositions by proposing to go along-side the Repulse; this I did in order to see how far they would proceed; and I was happy to find they did not approve of so doing. My reason for asking for a flag of truce was, I thought if I could obtain permission to take it, none of the other ships would fire on the Repulse out of respect to the Flag of Truce they had granted, but finding myself opposed, I was obliged to act a part I abominated. I do not recollect giving the orders to fire; but if I did, they must have been the orders of compulsion, and not choice.

Thomas Barry, Seaman, deposed I was on board the Monmouth; but I will prove I was not at that time on board the Monmouth, that I was then on board the Director, and that he must have confused me with some other person. He deposed that after firing the 6th or 7th gun from the forecastle, that on the gun being loaded the 7th time, I put a crow bar into the mouth of the gun. He relates something of being confined by a man called Captain Vance. He also swore that when the Repulse got off I shook my fist and said "Damn me, she's off, and that I would send her to Hell." I do declare that I went on board the Sandwich in the Ardent's boat, and not in the manner described by Barry.

John Somerland does not recollect my working with my clothes off, but he says I was on board the Monmouth. In fact, I was more in want of rest, than anxious to look after Don Quixotte adventures. I did not go on board the Monmouth it is certain, but with the same views I had in going on board the Director. As to my saying I would take an outside ship and repair to the Leopard, I could have no other motive for so doing, than to make her keep her station. Some days previous to the Sandwich being delivered up, the Montague made a signal for a Delegate, I thought they were by no means amicable with respect to their dispositions in general, and therefore the signal was not complied with.

I have now made all the remarks which occur to me on the evidence. I now address myself again to the Court, not for the purpose of informing that where mercy can be extended, it ought to be shewn, being assured that I shall have strict justice; but I appeal to them to attend particularly to the evidence of Barry. However I may have been misrepresented in the Public Prints, my intentions were good. My character is dearer to me than a thousand lives. My country allows me justice, and justice I trust I shall have from this Honourable Court.

Lord NORTHESK, *Captain of the Monmouth, sworn.*

Q. Have you heard the Charge read. A. Yes.

Q. My Lord, do you recollect whether you was on board the Monmouth, at the time of firing on the Repulse?

A. I was on shore. I was not on board at that time,

Q. Has your Lordship been at any time on board of the Sandwich?

A. I was on board the Sandwich, on the 6th of June.

Q. Did it impress your Lordship, from the reception you met with, that

the

the people, notwithſtanding the exiſting differences, where perfectly loyal to their Sovereign and Country?

A. The Seamen in the Cabin ſaid, they were very loyal.

Q. Does your Lordſhip recollect a mark of loyalty, namely immediately as your Lordſhip entered the cabin door, the Band ſtriking up God Save the King? A. I remember the Priſoner ordering the Band, as I came into the cabin, to play God Save the King.

I have no further queſtions to aſk.

Preſid. In what oſtenſible ſituation did the Priſoner appear to be when your Lordſhip entered the cabin? A. He appeared to me as Preſident of the people then calling themſelves Delegates.

Q. Was he the chief ſpokeſman during your Lordſhip's conference with them? A. Yes, he was.

Proſ. Did you receive——

Parker. I thought the evidence for the Crown had been done with.

Judge Advocate. If a Proſecutor offers evidence, the Priſoner has a right to croſs-examine him; if the Priſoner produces evidence, the Proſecutor has the ſame right.

Q. Did you receive the Letter now produced from the Priſoner?

A. I did.

Sandwich, Nore, June 6, 1796.

To the Right Honourable Earl NORTHESK.

MY LORD,

You are hereby required and directed to proceed to London with ſuch Papers as are intruſted to your care, and to lay the ſame before our Gracious Sovereign King George the Third, and to repreſent to our Gracious Sovereign that the Seamen at the Nore have been groſsly miſrepreſented; at the ſame time, if our Gracious Sovereign does not order us to be redreſſed in *fifty-four* hours, ſuch ſteps will be taken as will aſtoniſh our dear Countrymen! And your Lordſhip is requeſted to ſend anſwer in the ſpecified time, by your Purſer, who is to attend your Lordſhip.

I am, your humble ſervant,

(By Order of the Delegates of the whole fleet,)

RICHARD PARKER, Preſ.

My Lord, I am further to acquaint your Lordſhip, that an oath has been taken by the Delegates of the Fleet, that they never had any communication with Jacobins and Traitors.

(Signed) RICHARD PARKER, Preſ.

Q. Did your Lordſhip receive that letter from the Priſoner? Did the Priſoner acknowledge it to be his letter?

A. The letter was delivered to me by the Priſoner.

Examined by PARKER.

Q. Was your Lordſhip preſent at the writing the before-mentioned letter?

A. I was preſent at the writing the laſt paragraph, beginning with the words, "my Lord," and ending with the words, "Richard Parker, Preſident," by the Priſoner.

Court. Who dictated the letter? Was the latter part dictated by the Priſoner? A. He wrote it himſelf, without any dictating.

Q. Does not your Lordſhip recollect ſeeing a ſhew of hands from the Delegates aſſembled, ordering and inſiſting on the latter part of the letter being wrote? A. Do you mean the latter part of it?

Court. Yes, the latter part of it? A. I remember it was their wiſh that it ſhould be expreſſed, that they were neither Jacobins nor Traitors, or words to that effect.

Court. Was the latter part read to the Delegates after Parker wrote it?

A. I don't recollect.

Q. Does your Lordſhip remember whether the Committee wiſhed to have thoſe words Jacobins and Traitors expreſſed before or after Parker had written the ſequel to that letter.

A. I do not recollect, but I believe it was before.

Capt. JOHN KNIGHT *of the* Montague, *ſworn.*

Q. Do you recollect being on board his Majeſty's ſhip the Sandwich, during the late exiſting differences?

A. I do perfectly well, being on board more than once.

Q. Were you ever impreſſed with any marks of Loyalty ſhewn by the people aſſembled on board?

A. By Muſic. I have heard muſic, "God ſave the King!" — "Britons ſtrike home!" And I have heard expreſſions of Loyalty, that they venerated their Sovereign, and eſteemed him, I think I have heard the Priſoner ſay ſo himſelf: And further, I have heard the Priſoner ſay, that *if there were a certainty that the Enemy's Fleet were at ſea, they would take the Fleet under their direction in ſearch of them.*

Court. Did he ſay he or the Fleet? A. He ſpoke in the plural number. He further ſaid, *That if the Dutch Fleet was ſtill in the Texel, he would lead the Fleet in and attack them, to prove to the Nation that they were neither Rebels nor Traitors.* I have no more queſtions to aſk.

Priſ. Do you remember the flags hoiſted on board the Sandwich the 29th May and the 4th June? A. I was not at the Nore the 29th May. On the 4th June I do remember the Standard at the fore, the Union at the mizen and a Red flag at the main.

Capt. Meſs. The Mutiny flag you mean?

Capt. Knight. You may call it a Mutiny flag; it was a plain Red flag at the main, and the Union at the mizen.

Q. On Royal birth-days, is it not the practice to hoiſt the Standard at the main? Yes, it is.

Court. At the time the Standard was hoiſted on the fore top-gallant head and the Red flag at the main, was it prior to your hearing the Priſoner make uſe of loyal expreſſions, or afrer? A. It was on the 8th when I heard him

make uſe of loyal expreſſions; the day I went on board with the Act of Parliament.

[A Letter was here produced.]

Q. Did you receive the Letter now produced from the Priſoner? A. I did not receive it from the Priſoner; it was brought me by one of the Committee men of the Montague.

The Letter was read, ſtating that Capt. Knight had permiſſion to go on ſhore with Mrs. Knight, but to return in three days. That the Officers were detained as hoſtages for the Delegates on ſhore, and relying on Captain Knight's honour to return, as they conſidered him on his parole.

Preſident. Was the Red flag flying on board the Sandwich when the Priſoner mentioned thoſe expreſſions of loyalty? A. It was.

Q. Have you ever underſtood from the Priſoner, or any other of thoſe they called Delegates of the Fleet, what the Red flag meant, whether a flag of defiance? A. I recollect on the 8th, when I was on board the Sandwich, aſking the queſtion what it was meant to repreſent, and was informed, but whether by the Priſoner or ſome other of his aſſociates I know not, that they *wiſhed to eſtabliſh it and to fight under it, for that the Dutch had ſtolen it from the Engliſh, and they wiſhed to reſtore it.*

Court. During the time you was on board the Sandwich, did the Priſoner appear to direct the proceedings? A. I never heard him giving any directions; it was him who addreſſed me. He reported to me when the boat was ready to take me.

Q. How do you reconcile the loyalty you have mentioned with the treatment you received, by the total annihilation of the authority, the breach of the laws of your country, and impriſonment of your Officers? A. I conceive it does not apply to the Priſoner: I was robbed of my authority before I ſaw the Priſoner.

The queſtion was repeated. A. It is irreconcileable certainly, but I only meant that my authority was annihilated before I came on board and ſaw the Priſoner.

I wiſh to aſk Capt. Moſs a queſtion.

The Judge Advocate informed him it was irregular, and the Priſoner waved his deſire.

Mr. JACOB SWAINSON, *Gunner.*

Q. Have you heard the charges read? A. No.

Q. Do you recollect the day on which Admiral Buckner's flag was ſtruck on board the Sandwich? A. I do not know the particular day.

Q. Do you know any particular perſon or perſons who were aiding and aſſiſting in ſtriking the flag? A. I do not.

Q. Do you recollect Capt. Moſs having ſaid on the quarter deck, that as the Mutiny unfortunately had commenced, he thought it fortunate I happened to be on board of the Sandwich to keep down the ſpirit of it, as I ſeemed perfectly moderate? A. I do not recollect Capt. Moſs ſaying any thing of this kind.

Q. Do you ever recollect, during the Mutiny, to have informed me that ſuch converſation had taken place between Capt. Moſs and his Officers?

A. I do not.

Q. Did

Q. Did you ever form an opinion of me perſonally, that it would make me happy if the fleet could be brought into a moderate way of thinking, and of delivering up the command of their ſhips to the Officers, and truſting to our gracious Sovereign for a redreſs of grievances. A. I have heard the Priſoner expreſs a wiſh that it was ſettled, at the latter part of it.

Q. Was it at the latter part of the Mutiny you only noticed me?

Court. If your queſtion is only as to opinion, it will be of no ſervice to you? A. I have no other queſtions.

Q. Capt. Moſs, was the Priſoner particularly active when the Repulſe was aground, and what did the Priſoner ſay on getting her off? A. I did not hear him ſay any thing on her getting off; when the Priſoner came on board that evening, he ordered the boat to be hoiſted out of the Sandwich, that he might go on board the Director, get a ſpring on her cable, and if his father was on board that ſhip, pointing to the Repulſe, he would blow her to Hell, for that was where ſhe belonged to.

Q. What do you recollect the Priſoner has ſaid reſpecting the cauſe he was embarked in. A. I have heard the Priſoner ſay he thought it was a good cauſe, and there was no doubt but they ſhould gain their point.

Q. What point? A. A redreſs of their grievances, as they complained. I underſtood it ſo.

Q. Do you recollect the Priſoner giving any directions or orders at any time on board the Sandwich? A. I do not recollect his giving any orders, except the laſt that I have ſtated; I was very ſeldom on deck.

Q. Did you ever hear the Priſoner, or any other perſon calling himſelf a Delegate, ſay what they meant by hoiſting the Red flag? A. I don't recollect I ever did.

Q. Did you never aſk what it was? A. I never did.

Examined by PARKER.

Q. Do you ever recollect my ſaying to you it was a great pity the Inflexible ſhould have been in the fleet; that if it had not been for that ſhip things would have been amicably ſettled long ſince? A. Yes, I do.

Court. Do you recollect on what day the Priſoner ſaid that? A. I do not.

Q. Was it after the King's birth-day? A. I can't ſay.

Court. I wiſh to know at what time of day the Repulſe got on ſhore, and at what time did ſhe get off? A. She got aſhore about three o'clock in the afternoon, to the beſt of my recollection, and got off between five and ſix the ſame afternoon.

Q. Do you recollect what time Parker returned from the Monmouth to the Sandwich? A. I do not know; it was late.

Q. Was the Repulſe on ſhore at the time the Priſoner ordered the Sandwich's boat to be hoiſted? A. She had been on ſhore ſome time.

Q. At what time that afternoon did the Monmouth ceaſe firing?

A. To the beſt of my recollection the Repulſe was got off before the Monmouth ceaſed firing.

Q. Was it ſufficiently day-light for you to ſee the Repulſe come to her anchor in Sheerneſs harbour?

A. She was in, to the beſt of my recollection, before dark.

Q. Can

Q. Can you recollect whether it was before or after the Repulſe went into Sheerneſs harbour that the Priſoner ſaid it was a great pity the Inflexible was in the fleet? A. I do not recollect whether it was before or after.

EDWARD ALLEN, *of the Sandwich, ſworn.*

Q. Do you recollect the day on which the Mutiny broke out on board His Majeſty's ſhip the Sandwich? A. No, I do not.

Q. Was you on board that day? A. Yes.

Q. Did I take any active part in the proceedings of that day or the following? A. Not to my knowledge.

Q. Do you recollect my frequently complaining to you and your meſſmates?

Preſident. What you have aſked can be of no ſervice to you.

Parker. I mean to ſhew I conſidered that it was a pity things ſhould be carried on in the violent manner they were.

A. I do not recollect any ſuch words in my preſence.

I have nothing but converſation of that kind to aſk.

Court. You ſhall not be checked in any queſtion.

Q. Did you ever form an opinion—

Court. Unleſs you can diſprove what has been ſworn, any opinion can be of no uſe—however you may go on.

Q. Did you ever form an opinion from the manner of my proceedings, that it would give me pleaſure to ſee matters ſettled?

A. No, not as I know off, I never ſaw any thing amiſs of him.

Court. Did you ever hear the Priſoner, or any body elſe calling himſelf a Delegate, ſay what they meant by the Red Flag? A. No.

Q. Do you know what the Red Flag was called on board ſhip—what was the meaning of it? A. No, I do not.

MATTHEW HOLLISTER, *Seaman of the Director, ſworn.*

Q. Do you recollect at what time I left his Majeſty's ſhip Director the day the Repulſe got on ſhore, attempting to get into Sheerneſs harbour?

A. I can't ſpeak to the hour or minute, but *it was late in the evening.*

The Priſoner ſaid he had no other queſtion, as the witneſs was to be tried himſelf.

Q. Did you ever hear the Priſoner or any other perſon ſay what the Red Flag meant? A. As I am bound before Almighty God, I do not know.

THOMAS BARRY, *of the Monmouth.*

Q. What time of the day was it that you ſtated to the Court reſpecting my firing the forecaſtle gun of His Majeſty's ſhip Monmouth, at the Repulſe on ſhore, attempting to get into Sheerneſs?

A. About four o'clock in the afternoon.

Q. You ſtated to the Court, that you was confined by order of a man, whom you called Captain Vance. At what time did that confinement commence, and how long did it continue? A. I dare ſay, an hour and a half. It began about a quarter after four, and ended about a quarter before ſix.

Q. You related before my giving you a ſhove over the heel of the ſpare fore-top maſt, at what time did that tranſaction take place.

A. Cloſe upon four o'clock.

Q. Do

Q. Do you not think that is is poſſible for you, in the hurry and confuſion of things on board the Monmouth, to have miſtaken me for ſome other perſon? A. No.

Q. At what time did the tranſaction of the crow-bar being introduced into a gun, with intent to be fired, which you have repreſented to have taken place, happen? A. About ten minutes before four o'clock.

Q. Was the perſon who introduced the crow bar with part of his cloaths off, or the whole of them on? A. His ſhort or half coat was off; he had his waiſtcoat on.

Q. What time was it when the diſcourſe you related took place between myſelf and the man you call Capt. Vance? A. About half paſt four.

Capt. Moſs. Is it within your knowledge that any boat eſcaped from the Monmouth the evening of her firing on the Repulſe? A. No, I can't ſay; I don't know of any.

WILLIAM HOBBES, *Seaman of the Monmouth.*

Parker. Take particular notice of me, and be certain that you know me.

Q. Do yon know the Priſoner? A. I never ſaw him in my life, to my knowledge.

Q. Where was you when the Monmouth fired on the Repulſe?

A. I was quartered on the forecaſtle, but I was moſtly between decks.

GEORGE NICHOLS, *Seaman of the Monmouth.*

Q. Do you know me? A. No, Sir, I do not.

Q. What part of the ſhip was you in when the Monmouth fired on the Repulſe? A. I was quartered on the forecaſtle, but never went up.

SAMUEL BEER.

Q. Do you know me? A. No, I do not. To my knowledge I never ſaw you.

Q. What part of the ſhip were you ſtationed in when the Monmouth fired on the Repulſe? A. I was at the forecaſtle. I was at my quarters part of the time; the reſt between decks.

Pref. At what gun? A. The ſecond on the forecaſtle.

Q. How long did you remain on the forecaſtle after the Monmouth commenced her fire on the Repulſe? A. About a quarter of an hour.

Q. During the time you was on the forecaſtle, did you obſerve any tranſaction of a crow bar being introduced into a gun? A. No, I did not.

Court. How long did the firing laſt? A. I believe about an hour.

Pref. Have you any more evidence? A. I wiſh to call back Holliſter.

HOLLISTER *called in.*

Q. Can you recollect any ways near the time of my quitting the Director, or the day before alluded to?

A. It was ſome ſhort time before the Repulſe got afloat.

Q. Had not the Monmouth ceaſed firing?

A. I believe ſhe had.

Q. Which

Court. Which ceaſed firing firſt, the Director or the Monmouth?

A. I cannot poſitively ſay which, I was below.

Q. Did the Director ceaſe firing before the Repulſe got off?

A. I believe ſhe did not.

Capt. Moſs. How long had you been below at the time the Director was firing, previous to the Repulſe being afloat?

A. My ſtation being in the Magazine, I went down for the ſafety of the ſhip. I was bakwards and forwards. I cannot tell.

Q. Was you in the Magazine from the commencement of the firing?

A. Not all the time.

Q. How long after the commencement of the firing was it that you went into the Magazine? A. About a quarter of an hour.

Q. How long did you remain there? A. About twenty minutes.

Q. Where did you go afterwards?

A. I went up between decks; there was a great deal of powder between decks, and the matches were careleſsly carrying about. I went to prevent any accident.

Q. How long did you remain between decks?

A. Backwards and forwards, about three quarters of an hour.

Q. Were did you go to after the firing ceaſed?

A. I went up on the main deck after the firing ceaſed.

Q. Had the firing left off when you went on the main deck?

A. Yes.

Q. At what hour was it when the Priſoner left the Director?

A. It was late in the evening.

Q. Was it before or after ſun-ſet?

A. Somewhere near about ſun-ſet.

I have no more evidence.

Preſ. You ſhould conſider the very heavy charges againſt you; the Court will give you time.

Parker. I wiſh to be informed whether the Court can wait till to-morrow? There are ſeveral other things; I have not had an opportunity of ſtating ſeveral other matters. I could ſhew I was very forward in delivering up the Sandwich. I hope the Court will allow me the indulgence.

The Preſident informed him it could not be granted.

The Priſoner withdrew.

The Court was then cleared, at half paſt one o'clock.

The Court having deliberated for TWO HOURS AND A HALF, the Priſoner was called in; when the Deputy Judge Advocate read as follows:

"At a Court Martial held on board his Majeſty's ſhip, Neptune, of 98 guns, lying in the river Thames, on Thurſday the 22d day of June, 1797, and continued by adjournment till the 26th of the ſame month—Preſent;

(Here the Names of the Members were recited.)

The Court, purſuant to an Order of the Commiſſioners for executing the Office of Lord High Admiral, directed to Sir Thomas Paiſley, have proceeded to try Richard Parker, being a perſon belonging to His Majeſty's Fleet, on

on a charge for having attempted to make matinous aſſemblies on board of the Sandwich, and divers other veſſels at the Nore; and alſo on a charge of having behaved with contempt to the Officers on duty, and having diſobeyed his ſuperior Officers. The Court having heard witneſſes in ſupport of the Charges, and alſo the Priſoner in his defence, and the evidence in ſupport of what he has alledged in his defence, are unanimouſly of opinion, that the whole of the Charges are FULLY PROVED, *that the crime is as unprecedented as wicked; as ruinous to the Navy, as to the Peace and Proſperity of the Country. The Court doth therefore adjudge him to Death: And he is ordered to ſuffer death accordingly, at ſuch time and place as the Lords Commiſſioners of the Admiralty, or any three of them ſhall appoint.*"

Parker, the Priſoner, with a degree of fortitude and undiſmayed compoſure which excited the aſtoniſhment and admiration of every one, ſpoke as follows:

"I bow to your ſentence with all due ſubmiſſion, being convinced I have acted from the dictates of a good conſcience.—GOD, who knows the hearts of all men, will, I hope, receive me. I hope that my death alone will atone to the Country; and that thoſe brave men who have acted with me will receive a general Pardon: I am ſatisfied they will all return to their duty with alacrity."

Preſident. It is in the breaſt of the Court to order you for execution immediately, but we think it better to give you time to repent your crime.

Priſoner. I return you my thanks for the indulgence.

The Court adjourned at half paſt four.

The preſſure of the crowd to hear the defence of Parker was immenſe.

FINIS.

Richard Parker commonly
ſuppoſed to be a Scotchman was in
reality an Engliſhman. He uſually
ſailed from the port of Aberdeen to
London, and married a wife from
Aberdeen. After his execution and
his expoſure on the gibbet, his wife
arrived from Aberdeen, and by the
aſſiſtance of her friends, they
reſcued him from the ignominious
expoſure. The Government apprehended
her, but in a few days after they
gave her a free pardon.

AN ACCOUNT OF THE TRYAL of SALLEY SALISBURY,

At the SESSIONS-HOUSE in the *Old Bailey*, on *Wedneſday* the 24th of *April*, 1723. Before the Rt. Honourable Sir *Gerard Conyers*, Knight, Lord Mayor of the City of *London*; the Lord Chief Juſtice *Prat*, Mr. Juſtice *Tracy*, Mr. Baron *Price*, Sir *William Thompſon*, Kt. Recorder, and ſeveral of His Majeſty's Juſtices of the Peace for the City of *London*, and County of *Middleſex*.

THE Charge in her *Indictment* was, That ſhe on the 22d of *December* laſt, in the 9th Year of His Majeſty's Reign, violently, and with malice fore-thought, did make an Aſſault upon the Honourable *John Finch*, Eſq; and with a Knife ſhe held in her left Hand, did ſtrike and wound Him upon the Left part of his Body, near the Pap, giving him a Wound of the Length of 1 Inch, and the Depth of 3 Inches, of which he long languiſh'd, and alſo, that ſhe the ſaid *Salley Salisbury*, &c. did at the Place, and Time, and in the Manner aforeſaid, violently and of her malice Fore-thought, the ſaid Honourable *John Finch*, Eſq; ſtrike, and wound, with an Intention to Kill and Murther, contrary to the Peace of the *King's* Crown and Dignity, and the *Statute* in that Caſe made and provided. To which *Indictment* ſhe pleaded *not Guilty*, and for her Tryal, put her ſelf upon *God* and *her Country*.

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